

July 14, 2015



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 15727
(FIRST REVISION)

EXPIRATION DATE: June 30, 2019

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Blackhawk Helicopters
El Cajon, CA
Part 133 Certificate # B1WL3471
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain hazardous materials by 14 CFR Part 133 Rotorcraft External Load Operations, transporting hazardous materials attached to or suspended from an aircraft, in remote areas of the US only, without being subject to hazard communication requirements, quantity limitations and certain loading and stowage requirements. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This Special Permit does not grant the authority to use foreign controlled airspace or airports outside the United States.
 - e. This Special Permit does not waive any FAA airworthiness requirements or the need to obtain other required FAA authorizations.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Table § 172.101, Column (9B) in the materials are forbidden for air transportation by cargo air or they exceed the quantity limitations, § 172.204(c)(3), § 173.27(b)(2) and § 175.30(a)(1) in that the explosives are forbidden by cargo aircraft, §§ 172.200, 172.300 and 172.400 in that shipping papers, marking and labeling are waived, § 173.27 general requirements by air, § 175.30 Inspection of shipment, § 175.33 shipping paper and pilot notification are all waived, Part 173 in that certain packaging requirements are waived, and § 175.75 in that alternative stowage is authorized.
5. BASIS: This special permit is based on the application of Blackhawk Helicopters dated May 5, 2015 submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Aerosols, non-flammable, (each not exceeding 1 L capacity)	2.2	UN1950	N/A
Air, compressed	2.2	UN1002	N/A
Batteries, wet, filled with acid, electric storage	8	UN2794	III
Batteries, wet, filled with alkali, electric storage	8	UN2795	III
Diesel fuel	3	UN1202	III
Engines, internal combustion, flammable gas powered	9	UN3166	N/A
Flammable liquids, n.o.s.	3	UN1993	I, II, III

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Fuel, aviation, turbine engine	3	UN1863	I
Gasoline	3	UN1203	II
Kerosene	3	UN1223	III
Lighters <i>or</i> Lighter refills cigarettes, containing flammable gas	2.1	UN1057	N/A
Lithium batteries, contained in equipment	9	UN3091	II
Lithium battery	9	UN3090	II
Oxygen, compressed	2.2	UN1072	N/A
Paint <i>including</i> paint, lacquer, enamel, stain, shellac solutions, varnish, polish, liquid filler, and liquid lacquer base	3	UN1263	I, II, III
Petroleum distillates, n.o.s. <i>or</i> Petroleum products, n.o.s.	3	UN1268	I
Petroleum gases, liquefied <i>or</i> Liquefied petroleum gas	2.1	UN1075	N/A
Propane <i>see also</i> Petroleum gases, liquefied	2.1	UN1978	N/A
Rags, oily	4.2	UN1856	III

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7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is the manufacturer's original packaging or a packaging of equal or greater strength and integrity. Compatibility and effectiveness of all packaging must, at a minimum, meet the requirements of 49 CFR 173.24.

b. Aerosols - All Aerosols and compressed gases must be secured in an upright position with protective caps and/or covers to prevent any unwanted discharge and be secured against movement incidental to transportation.

c. Batteries (Other than Lithium Batteries) - All batteries packed in equipment must be packed in a manner that prevents accidental activation or dangerous evolution of heat. Spare Batteries or batteries pack with equipment must have their terminals insulated or protected to prevent short circuits and prevent a dangerous evolution of heat.

d. Lithium Batteries - All lithium batteries packed with equipment, or contained in equipment, must be packed in such a manner as to prevent short circuits, including movement that could lead to short circuits. They must be equipped with an effective means to prevent dangerous reverse current flow (e.g., diodes, fuses, etc.) if a battery contains cells or series of cells that are connected in parallel. Additionally, they must be of a type proven to meet the requirements of each test in the UN Manual of Tests and Criteria (IBR; see 49 CFR 171.7).

e. Equipment - Liquid fueled or gasoline powered equipment may be filled to not more than 80% of their capacity to allow for expansion due to altitude changes.

f. Compressed Gas - Compressed gas (Propane etc...) must be transported in serviceable DOT approved cylinders. The cylinders must be secured in such a manner that prevents the cylinder from movement during transportation. The cylinder neck/valve shall be protected by the use of safety caps or collars. At no time shall the safety caps or collars be used as a lifting point.

g. Spontaneously Combustible Materials - Division 4.2 materials must be transported in sealed containers to prevent any spontaneous combustion.

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8. Compatibility of cargo - Hazardous material that might react dangerously with one another may not be placed next to each other or in a position that would allow a dangerous interaction in the event of leakage. The Segregation Table in § 175.78 must be used.
9. MODES OF TRANSPORTATION AUTHORIZED: Rotorcraft External Load Operations.
10. OPERATIONAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport materials covered by this special permit.
 - a. Authorized aircraft. Aircraft used under this special permit must be authorized as part of an FAA part 133 Operating Certificate.
 - b. Operations manual. FAA part 133 operations must be conducted in accordance with conditions and limitations specified in the certificate holder's FAA-approved Rotorcraft Load Combination Flight Manual (RLCFM) and Hazardous Material Safety Mitigation Plan.
 - c. Authorized persons aboard aircraft. No person may be carried on the aircraft other than as authorized by 14 CFR 133.35. Training or qualification of a new crewmember will not take place during the execution of this Special Permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: HERZOGK/SG